

		stay analysis), setting forth a general list of discovery devices (Herzog Decl. (ROA 69) ¶¶ 13-14) is not a substitute for a specific factual showing that discovery in this action would duplicate discovery potentially at issue in a potential criminal case against defendants. See 4/16/26 Order at 4. The People are ordered to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed September 10, 2026 (ROA 90), and based thereon continues the September 17, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The joint status conference statement need only apprise the court of material developments in the ensuing period. Clerk to give notice.
13	Varela v. American Addiction Centers, Inc. 2023-01366667	<u>Plaintiff Steve Varela's Motion for Leave to File First Amended Complaint</u> Plaintiff Steve Varela moves for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of Labor Code section 246. Seventy-nine days after filing his motion, plaintiff filed a "supplemental" brief in which he seeks leave to amend his complaint to add a second plaintiff. For the following reasons, plaintiff's motion for leave to file a first amended complaint to add a PAGA claim and a cause of action for violation of section 246 is granted, and plaintiff's "supplemental" request for leave to amend his complaint to add a second plaintiff is denied. Civil Procedure Code section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. <i>Hulsey v. Koehler</i> (1990) 218 Cal.App.3d 1150, 1159. Ordinarily, courts should exercise liberality in permitting amendments at any stage of the proceeding. <i>Id.</i> California Rule of Court 3.1324 states, in relevant part: (a) Contents of motion A motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

		(b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324. Plaintiff's motion for leave to amend the complaint to add a PAGA cause of action and a cause of action for violation of section 246 complies with Rule 3.1324. ROA 182, 187. Defendant did not file an opposition and thus has not identified any reasons the motion should not be granted or any prejudice from permitting this amendment at this juncture. As to plaintiff's "supplemental" brief, which is actually a second motion for leave to amend, plaintiff did not comply with Rule 3.1324. Plaintiff has not "[s]tate[d] what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located," and plaintiff's counsel does not state in her "supplemental" declaration when the facts giving rise to the amended allegations were discovered or the reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324(a)(3), (b)(3), (b)(4). In addition, the redlined copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 1) does not mention proposed new plaintiff Sergio Santana at all, and the clean copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 2) adds Santana's name in the case caption but does not appear to mention him anywhere in the pleading. Accordingly, plaintiff's motion for leave to file an amended complaint naming Sergio Santana as a plaintiff is denied. Plaintiff to give notice and to file and serve by September 24, 2026 a copy of the first amended complaint attached as Exhibit 2 to the June 3, 2026 Faccin Declaration (ROA 187).
14	Varela v. American Addiction Centers, Inc. 2023-01366691	Off calendar.